AUTHENTICATED
U.S. GOVERNMENT
INFORMATION
GPO

[CHAPTER 656.]

AN ACT

June 19, 1934.
[S. 3646.]
[Public, No. 420.]

To amend section 938 of the Revised Statutes to vest the courts with discretion to refuse to order the return of vessels seized for violation of any law of the United States; and to amend subsection (b) of section 7 of the Air Commerce Act of 1926, as amended, to provide for the forfeiture of aircraft used in violation of customs laws.

Vessels seized for violation of laws.
Vesting courts with discretion to refuse to order return.
R.S., sec. 938, p. 178; U.S.C., p. 937.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That section 938 of the Revised Statutes (U.S.C., title 28, sec. 751) is amended by adding at the end thereof the following new sentence: "Notwithstanding the provisions of this section or any other provisions of law relating to the return on bond of vessels seized for the violation of any law of the United States, the court having jurisdiction of the subject matter, may, in its discretion and upon good cause shown by United States, refuse to order such return of any such vessel to the claimant thereof.

Air Commerce Act of 1926, amendment.
Vol. 44, p. 574; U.S.C. Supp. VII, p. 1922.

SEC. 2. That subsection (b) of section 11 of the Air Commerce Act of 1926, as amended (U.S.C., Supp. VII, title 49, sec. 181), is amended by striking out the first sentence thereof and inserting in lieu thereof the following two new sentences: "Any person who (1) violates any provision of subdivision (a) of this section or any entry or clearance regulation made under section 7 (b) of this Act, or (2) any immigration regulation made under such section, shall be subject to a civil penalty of $500 which may be remitted or mitigated by the Secretary of Commerce, or the Secretary of Labor, respectively, in accordance with such proceedings as the Secretary shall by regulation prescribe. Any person violating any customs or public health regulation made under section 7 (b) of this Act, or any provision of the customs or public-health laws or regulations thereunder made applicable to aircraft by regulation under such section shall be subject to a civil penalty of $500, and any aircraft used in connection with any such violation shall be subject to seizure and forfeiture as provided for in such customs or public-health laws, which penalty and forfeiture may be remitted or mitigated by the Secretary of the Treasury."

Penalty provisions.

Remission of fine authorized.

Customs or public health regulation applicable to aircraft.
Vol. 44, p. 572; U.S.C. Supp. VII, p. 1021.

Approved, June 19, 1934.

[CHAPTER 657.]

AN ACT

June 19, 1934.
[S. 3696.]
[Public, No. 421.]

Authorizing the President to make rules and regulations in respect to alcoholic beverages in the Canal Zone, and for other purposes.

Canal Zone.
Alcoholic beverages in; rules and regulations.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That the President is hereby authorized to make rules and regulations in respect to the sale and manufacture of alcoholic beverages within, and the importation thereof into and exportation thereof from, the Canal Zone, including the authority to prescribe licenses and fees for the sale and manufacture of such beverages.

Penalty provisions.

SEC. 2. Any person violating any provision of such rules and regulations shall be punished by a fine of not more than $500 or imprisoned in jail for not more than six months, or by both, and in addition the license of such person may be revoked or suspended as the President may by such rules and regulations prescribe.

Laws, etc., repealed.

SEC. 3. All laws, rules, regulations, and orders in force prior to the date this Act takes effect, insofar as they apply to the sale, manufacture, possession, transportation, importation, and exportation of alcoholic beverages in the Canal Zone, are repealed.